

IN THE HONOURABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA,
SITTING IN ITS OCTOBER TERM, A. D. 2025.

BEFORE HIS HONOR : YAMIE QUIQUI GBEISAY, SR..... CHIEF JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE ASSOCIATE JUSTICE
BEFORE HIS HONOR : YUSSIF D. KABA ASSOCIATE JUSTICE
BEFORE HER HONOR: CEANEH D. CLINTON-JOHNSON.....ASSOCIATE JUSTICE
BEFORE HIS HONOR : BOAKAI N. KANNEHASSOCIATE JUSTICE

Stephanie Audrey Kpoto of the City of)
Monrovia, Liberia Movant)
)
Versus) Motion to Dismiss Appeal
)
The Intestate Estate of the late Joseph V.)
Gaye, Sr. by and thru its Administrators,)
Stanton V. Gaye, Victoria Gaye, George)
Gaih and Sammie Peter Paul, also of the)
City of Monrovia, Liberia Respondent)

GROWING OUT OF THE CASE

The Intestate Estate of the late Joseph V.)
Gaye, Sr. by and thru its Administrators,)
Stanton V. Gaye, Victoria Gaye, George)
Gaih and Sammie Peter Paul, also of the)
City of Monrovia, Liberia Appellant)
)
Versus) Appeal
)
Stephanie Audrey Kpoto of the City of)
Monrovia, Liberia Appellee)

GROWING OUT OF THE CASE:

Stephanie Audrey Kpoto of the City of)
Monrovia, Liberia Petitioner)
)
Versus) Petition for Specific
) Performance
The Intestate Estate of the late Joseph V.)
Gaye, Sr. by and thru its Administrators,)
Stanton V. Gaye, Victoria Gaye, George)
Gaih and Sammie Peter Paul, also of the)
City of Monrovia, Liberia Respondent)

Heard: October 20, 2025 Decided: December 18, 2025

MR. JUSTICE YUSSIF D. KABA DELIVERED THE OPINION OF THE COURT

The records certified to this Court reveal that the movant, Stephanie Audrey Kpoto, instituted an action of *Specific Performance* before the Civil Law Court for the Sixth Judicial Circuit, Montserrado County, against the respondent, The Intestate Estate of the late Joseph V. Gaye, Sr., by and

thru its Administrators. Following a full trial, the court rendered final judgment against the respondent, holding it liable to perform its contractual obligations in favor of the movant.

The respondent, dissatisfied with the lower court's judgment, filed an appeal with this Honorable Court and completed the appeal process in accordance with the Civil Procedure Law Rev. Code 1:51.4.

Subsequently, the movant filed a motion to dismiss the appeal, arguing that the respondent's appeal bond was invalid because the insurance company acting as surety did not comply with the Central Bank of Liberia Insurance Directive No. CBL/ID/DIR/001/2025, issued under Chapter 101, Subchapter 1(A)&(B) of the Insurance Act of 2013. The directive prohibits any insurance company without a Certificate of Assets from issuing bonds or guarantees within the Republic of Liberia. The movant contended that, since the surety did not possess a valid Certificate of Assets, the bond was void from the beginning, and thus the respondent failed to meet the jurisdictional requirement under Section 51.4(c) of the Civil Procedure Law, which requires the filing of a valid appeal bond.

The respondent, in resistance, contended that it had fully complied with all jurisdictional steps required under Section 51.4, namely:

- (a) announcement of appeal;
- (b) filing of bill of exceptions;
- (c) filing of appeal bond; and
- (d) service and filing of notice of completion of appeal.

The respondent further argued that the Central Bank's directive cannot override the statutory appeal provisions of the Civil Procedure Law and that the absence of a Certificate of Assets is not among the jurisdictional elements required by law. Therefore, the respondent requested that this Court deny the motion.

The sole issue for determination is whether the surety's failure to obtain a Certificate of Assets as required by the Central Bank of Liberia makes the appeal bond defective, thus justifying the dismissal of the appeal.

We shall now proceed to address this lone issue.

Section 51.4 of the Civil Procedure Law outlines the four required jurisdictional steps to perfect an appeal. Missing any of these steps within the prescribed period renders the appeal invalid. This Court has repeatedly confirmed that these requirements are mandatory and jurisdictional. *Anthony Armah et al. v. Intestate Estate of the late Kemah Hoki Johnson*, Supreme Court Opinion; March Term, 2024; *Stevens v. NHS Bank et al.*, Supreme Court Opinion, March Term, A.D. 2012. The purpose of an appeal bond, as clarified in *Abi-Jaoudi v. Bindu Kiadii*, 40 LLR 777 (2001), is to compensate the appellee for the costs of the appeal and ensure payment of the judgment if the appellant loses. In *Ahmad v. Gbotoe*, 42 LLR (2004), this Court reaffirmed that the main goal of an appeal bond is to protect the winning party from financial harm caused by the delay of the appeal.

The Central Bank of Liberia Insurance Directive No. CBL/ID/DIR/001/2025, issued under the Insurance Act of 2013, states that no insurance company may issue any bond, surety, or financial guarantee without first obtaining a Certificate of Assets that proves its financial ability to meet such obligations. The Central Bank of Liberia Insurance Directive No. CBL/ID/DIR/001/2025, issued under the Insurance Act of 2013, is a valid exercise of the Central Bank's legal authority and is binding on all insurance entities operating within the Republic of Liberia. Therefore, the failure of an insurance company to follow its letter and intent when issuing an insurance bond renders such a bond defective.

However, records show that the Central Bank directive came into effect at the same time the respondent's appeal bond was filed. At that point, there was no proper dissemination of information to the insurance companies or courts regarding its enforcement. Furthermore, the movant did not present the directive when the appeal bond was approved for the trial judge's consideration.

Under these circumstances, and given that the respondent's bond was filed and approved in conformity with Section 51.4(c) of the Civil Procedure Law,

this Court holds that the respondent has substantially complied with the jurisdictional requirements of appeal.

This Court holds that while the Central Bank of Liberia Insurance Directive No. CBL/ID/DIR/001/2025 is binding and enforceable, however, the unique circumstances of this case, especially considering that the said directive was issued at the time the appellant procured its appeal bond, and sufficient notice had not been given to the insurance community of the directive, preclude its retroactive application to invalidate the respondent's appeal bond. Therefore, the movant's motion to dismiss the appeal is denied.

WHEREFORE, AND IN VIEW OF THE FOREGOING, the motion to dismiss the appeal is hereby denied. The Clerk of this Court is ordered to docket the appeal for hearing on its merits. Costs to abide the final determination of the case. AND IT IS HEREBY SO ORDERED.

WHEN THIS CASE WAS CALLED FOR HEARING, COUNSELLOR MORRIS MOMO DAVIS, JR., APPEARED FOR THE MOVANT. COUNSELLOR JONATHAN T. MASSAQUOI APPEARED FOR THE RESPONDENT.